

Court No. - 39

Case :- WRIT - C No. - 702 of 2019

Petitioner :- M/S R.B. Edibells Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ashok Kumar Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Heard Sri Ashok Kumar Singh, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondent no. 3 and learned Standing Counsel for the respondents no. 1 and 2.

The petitioner in the writ petition is seeking quashing of the recovery certificate dated 26.10.2018 whereby a recovery of Rs. 12,67,958/- is sought to be made from the petitioner. These recoveries are in respect of arrears of electricity bill.

In our opinion, the petitioner has a remedy by way of approaching the Respondent no.3-Executive Engineer, Electric Distribution Khand, Dakshinanchal Vidyut Vitran Nigam Ltd. Purvi Baipas Chhibramau, District Kannauj as per the provisions of Para 6.5 of the Electricity Supply Code, 2005.

The writ petition is accordingly, **dismissed**.

Order Date :- 10.1.2019

Kirti